

HB3505 FA1 DuelCo-AQH
3/23/2026 9:17:09 am

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3505
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Collin Duel

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 3505

By: Duel of the House

and

Daniels of the Senate

FLOOR SUBSTITUTE

An Act relating to garnishment procedure; amending 12 O.S. 2021, Section 1173, as amended by Section 4, Chapter 184, O.S.L. 2023 (12 O.S. Supp. 2025, Section 1173), which relates to noncontinuing earnings garnishment; requiring a form to commence garnishment accompany a summons when served on a garnishee; directing the Oklahoma Bar Association to prescribe a standardized form to commence garnishment; requiring the Administrative Office of the Courts post a link to the form on the Oklahoma State Courts Network website; listing information to be included on the form; modifying timeframe for garnishee's answer to be filed with the court; requiring the garnishee provide a copy of the answer to the judgment creditor's attorney or to the judgment creditor if there is no attorney; requiring the garnishee to withhold earnings on the first payday that occurs at least thirty calendar days after the garnishee files the answer; amending 12 O.S. 2021, Section 1173.4, as amended by Section 7, Chapter 184, O.S.L. 2023 (12 O.S. Supp. 2025, Section 1173.4), which relates to continuing earnings garnishment; requiring a form to commence garnishment accompany a summons when served on a garnishee; directing the Oklahoma Bar Association to prescribe a standardized form to commence garnishment; requiring the Administrative Office of the Courts post a link to the form on the Oklahoma State Courts Network website; listing information to be included on the form; modifying

1 timeframe for garnishee's answer to be filed with the
2 court; requiring the garnishee provide a copy of the
3 answer to the judgment creditor's attorney or to the
4 judgment creditor if there is no attorney; requiring
5 the garnishee to withhold earnings on the first
6 payday that occurs at least thirty calendar days
7 after the garnishee files the answer; amending 12
8 O.S. 2021, Section 1178, as amended by Section 9,
9 Chapter 184, O.S.L. 2023 (12 O.S. Supp. 2025, Section
10 1178), which relates to a garnishee's affidavit where
11 garnishment summons on earnings; modifying required
12 filing of affidavit from within seven or thirty days
13 to within twenty-one days of service; permitting an
14 employer to combine amounts to a creditor if
15 withholding earnings from more than one employee for
16 the same creditor; permitting a garnishee be liable
17 for a sanction under certain circumstances;
18 authorizing the court to excuse certain payments for
19 good cause; requiring garnishee pay creditor certain
20 penalty for failing to comply; repealing 12 O.S.
21 2021, Section 1179, which relates to failure of
22 garnishee to answer; providing for codification; and
23 providing an effective date.
24

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 12 O.S. 2021, Section 1173, as
17 amended by Section 4, Chapter 184, O.S.L. 2023 (12 O.S. Supp. 2025,
18 Section 1173), is amended to read as follows:

19 Section 1173. A. Any judgment creditor may obtain a
20 noncontinuing lien on earnings. For the purposes of this section,
21 "earnings" means any form of payment to an individual including, but
22 not limited to, salary, commission, or other compensation, but does
23 not include reimbursements for travel expenses for state employees.
24

1 B. A noncontinuing earnings garnishment shall be commenced by
2 filing the affidavit provided for by Section 1172 of this title.

3 C. The form for the summons required by this section shall be
4 prescribed by the Oklahoma Bar Association. The Administrative
5 Office of the Courts shall provide public access to the summons by
6 providing a link to the form on the Oklahoma State Courts Network
7 (OSCN) website.

8 D. The summons shall be served upon the garnishee, together
9 with a copy of the judgment creditor's affidavit, a form to commence
10 garnishment, a garnishee's answer form, notice of garnishment and
11 request for hearing, and claim for exemptions, in the manner
12 provided for in Section 2004 of this title and shall be returned
13 with proof of service within ten (10) days of its date.

14 E. The form to commence garnishment required by subsection D of
15 this section shall be a standardized form prescribed by the Oklahoma
16 Bar Association. The Administrative Office of the Courts shall
17 provide public access to the form to commence garnishment by
18 providing a link to the form on the Oklahoma State Courts Network
19 (OSCN) website. The form to commence garnishment shall include the
20 following information:

21 "The debtor's name is [state name of debtor].

22 The debtor's last known physical address is [insert address
23 or check box]:

24 [state last known physical address]

1 physical address is not known.

2 The debtor's last known mailing address is [insert address

3 or check one of the boxes]:

4 [state last known mailing address if different]

5 same as the last known physical address above

6 mailing address is not known.

7 The debtor owes [state amount owed] based on [provide

8 information sufficient to identify judgment upon which

9 garnishment action is based].

10 Creditor's agent is [state name of and contact information

11 for agent].

12 Employer must send amounts withheld from the debtor's

13 earnings to creditor at [state mailing address to which

14 amounts must be sent].

15 Instead of mailing amounts withheld to the address above,

16 creditor agrees that employer may instead send the amount

17 by the following means [state with specificity alternative

18 means of sending amounts withheld]."

19 F. The garnishee's answer shall be on a form prescribed by the

20 Oklahoma Bar Association. The Administrative Office of the Courts

21 shall provide public access to the garnishee's answer by providing a

22 link to the form on the Oklahoma State Courts Network (OSCN)

23 website.

24

1 ~~F. Within seven (7) days after the end of the defendant's then~~
2 ~~current pay period or thirty (30) days from the date of service of~~
3 ~~the garnishment summons, whichever is earlier~~ G. Not later than
4 twenty-one (21) calendar days after receiving the summons, copy of
5 the judgment creditor's affidavit, a form to commence garnishment, a
6 garnishee's answer form, notice of garnishment and request for
7 hearing, and claim for exemptions, as required by subsection D of
8 this section, the garnishee shall file the answer with the court
9 clerk and the garnishee shall pay the amount withheld from the pay
10 period provide a copy of the answer to the judgment creditor's
11 attorney or to the judgment creditor, if there is no attorney, with
12 a copy of the answer which shall state. The answer shall state:

13 1. Whether the garnishee was the employer of or indebted or
14 under any liability to the defendant named in the notice in any
15 manner or upon any account for earnings or wages, specifying, as
16 applicable, the beginning and ending dates of the pay period
17 existing at the time of the service of the affidavit and summons,
18 the total amounts earned in the pay period, and all of the facts and
19 circumstances necessary to a complete understanding of the
20 indebtedness or liability. When the garnishee shall be in doubt
21 respecting the liability or indebtedness, the garnishee may set
22 forth all of the facts and circumstances concerning the same, and
23 submit the question to the court;
24

1 2. If the garnishee shall claim any setoff, defense, other
2 indebtedness, liability, lien, or claim to the property, the facts
3 and circumstances in the affidavit;

4 3. At the garnishee's option, any claim of exemption from
5 execution on the part of the defendant or other objection known to
6 the garnishee against the right of the judgment creditor to apply
7 the indebtedness or property disclosed;

8 4. If the garnishee shall disclose any indebtedness or the
9 possession of any property to which the defendant or any other
10 person makes claim, at the garnishee's option, the names and
11 addresses of other claimants and, so far as known, the nature of the
12 claims; and

13 5. That the garnishee has mailed or hand-delivered a copy of
14 the notice of garnishment and exemptions, application for hearing,
15 and the manner and date of compliance.

16 H. The garnishee shall withhold earnings of a defendant under a
17 garnishment action on the first payday that occurs at least thirty
18 (30) calendar days after the garnishee files the answer required by
19 subsection G of this section.

20 ~~G.~~ I. The garnishment summons served on the garnishee under
21 this section is a lien on the defendant's property due at the time
22 of service or the effective date of the summons to the extent the
23 property is not exempt from garnishment.
24

~~H.~~ J. 1. A garnishment lien under this section has priority over any subsequent garnishment lien or garnishment summons served on the garnishee.

2. When a garnishment summons is served under this section on a garnishee while a previous garnishment lien is still in effect, the garnishee shall answer the subsequent garnishment lien or garnishment summons by stating that the garnishee is presently holding defendant's property under a previous garnishment lien or garnishment summons and by giving the date when all previous garnishment liens or garnishment summonses are expected to end.

~~I.~~ K. 1. When a postjudgment noncontinuing earnings garnishment under this section or a continuing earnings garnishment under Section 1173.4 of this title is issued against a defendant already subject to an income assignment for child support, the garnishee shall determine the maximum percentage of the defendant's disposable earnings according to the provisions of Section 1171.2 of this title and then deduct from that percentage the actual percentage of the defendant's disposable earnings actually withheld under the income assignment. The resulting percentage shall be the amount to be withheld by the garnishee, not to exceed twenty-five percent (25%).

2. For any involuntary legal or equitable procedures through which the earnings of any individual are required to be withheld for the payment of any debt which has statutory priority over this

1 section, the amount withheld pursuant to a garnishment under this
2 section shall be reduced by the actual sums withheld pursuant to
3 such other involuntary process.

4 ~~¶~~ L. A noncontinuing earnings garnishment may be suspended or
5 modified by the judgment creditor upon agreement with the judgment
6 debtor, which agreement shall be in writing and filed by the
7 judgment creditor with the clerk of the court in which the judgment
8 was entered. A copy of such agreement shall be mailed by first
9 class mail to the garnishee, postage prepaid by judgment creditor.

10 SECTION 2. AMENDATORY 12 O.S. 2021, Section 1173.4, as
11 amended by Section 7, Chapter 184, O.S.L. 2023 (12 O.S. Supp. 2025,
12 Section 1173.4), is amended to read as follows:

13 Section 1173.4. A. Any judgment creditor may obtain a
14 continuing lien on earnings. For the purposes of this section,
15 "earnings" means any form of payment to an individual including, but
16 not limited to, salary, wages, commission, or other compensation,
17 but does not include reimbursements for travel expenses for state
18 employees.

19 B. A continuing earnings garnishment shall be commenced by
20 filing the affidavit provided for by Section 1172 of this title.

21 C. The summons required by this section shall be on a form
22 prescribed by the Oklahoma Bar Association. The Administrative
23 Office of the Courts shall provide public access to the summons by
24

1 providing a link to the form on the Oklahoma State Courts Network
2 (OSCN) website.

3 D. The summons required by this section shall be served upon
4 each of the garnishees, together with a copy of the judgment
5 creditor's affidavit, a form to commence garnishment, a garnishee's
6 answer form, notice of garnishment and request for hearing, and
7 claim for exemptions, in the manner provided for in Section 2004 of
8 this title and shall be returned with proof of service within ten
9 (10) days of its date.

10 E. The form to commence garnishment required by subsection D of
11 this section shall be a standardized form prescribed by the Oklahoma
12 Bar Association. The Administrative Office of the Courts shall
13 provide public access to the form to commence garnishment by
14 providing a link to the form on the Oklahoma State Courts Network
15 (OSCN) website. The form to commence garnishment shall include the
16 following information:

17 "The debtor's name is [state name of debtor].

18 The debtor's last known physical address is [insert address
19 or check box]:

20 [state last known physical address]

21 _____ physical address is not known.

22 The debtor's last known mailing address is [insert address
23 or check one of the boxes]:

24 [state last known mailing address if different]

1 same as the last known physical address above
2 mailing address is not known.

3 The debtor owes [state amount owed] based on [provide
4 information sufficient to identify judgment upon which
5 garnishment action is based].

6 Creditor's agent is [state name of and contact information
7 for agent].

8 Employer must send amounts withheld from the debtor's
9 earnings to creditor at [state mailing address to which
10 amounts must be sent].

11 Instead of mailing amounts withheld to the address above,
12 creditor agrees that employer may instead send the amount
13 by the following means [state with specificity alternative
14 means of sending amounts withheld]."

15 F. The garnishee's answer shall be on a form prescribed by the
16 Oklahoma Bar Association. The Administrative Office of the Courts
17 shall provide public access to the garnishee's answer by providing a
18 link to the form on the Oklahoma State Courts Network (OSCN)
19 website.

20 ~~F. Within seven (7) days after the end of each pay period, or,~~
21 ~~if the judgment debtor does not have regular pay periods or is not~~
22 ~~paid by the garnishee within thirty (30) days from the date of the~~
23 ~~garnishment summons, and after any payment by the garnishee to the~~
24 ~~judgment debtor~~ G. Not later than twenty-one (21) calendar days

1 after receiving the summons, copy of the judgment creditor's
2 affidavit, a form to commence garnishment, a garnishee's answer
3 form, notice of garnishment and request for hearing, and claim for
4 exemptions, as required by subsection D of this section, the
5 garnishee shall file an answer with the court clerk, ~~and pay the~~
6 ~~amount withheld~~ and provide a copy of the answer to the judgment
7 creditor's attorney or to the judgment creditor, if there is no
8 attorney, together with a copy of the answer which shall state. The
9 answer shall state:

10 1. Whether the garnishee was the employer of the defendant
11 named in the notice, was indebted to the defendant, or was under any
12 liability to the defendant in any manner or upon any account for
13 earnings, specifying the beginning and ending dates of the pay
14 period, if applicable, existing at the time of the service of the
15 affidavit and summons, the total amounts earned in the entire pay
16 period, and all of the facts and circumstances necessary to a
17 complete understanding of any indebtedness or liability. When the
18 garnishee shall be in doubt respecting the liability or
19 indebtedness, the garnishee may set forth all of the facts and
20 circumstances concerning the same, and submit the question to the
21 court;

22 2. If the garnishee shall claim any setoff, defense, other
23 indebtedness, liability, lien, or claim to the property, the facts
24 and circumstances in the affidavit;

1 3. At the garnishee's option, any claim of exemption from
2 execution on the part of the defendant or other objection known to
3 the garnishee against the right of the judgment creditor to apply
4 the indebtedness or property disclosed;

5 4. If the garnishee shall disclose any indebtedness or the
6 possession of any property to which the defendant or any other
7 person makes claim, at the garnishee's option, the names and
8 addresses of other claimants and, so far as known, the nature of
9 their claims; and

10 5. That the garnishee has mailed or hand-delivered a copy of
11 the notice of garnishment and exemptions, application for hearing,
12 and the manner and date of compliance.

13 H. The garnishee shall begin withholding earnings of a
14 defendant under a garnishment action on the first payday that occurs
15 at least thirty (30) calendar days after the garnishee files the
16 answer required by subsection G of this section.

17 ~~G.~~ I. The garnishment summons served on the garnishee under this
18 section is a lien on the defendant's property due at the time of
19 service or the effective date of the summons, to the extent the
20 property is not exempt from garnishment. This lien attaches to
21 subsequent nonexempt earnings until one of the following occurs:

22 1. The judgment against the defendant is vacated, modified, or
23 satisfied in full;

24 2. The summons is dismissed; or

1 3. One hundred eighty (180) days from the effective date of the
2 summons have elapsed; provided, an affidavit and summons shall
3 continue in effect and shall apply to a pay period beginning before
4 the end of the one-hundred-eighty-day period even if the conclusion
5 extends beyond the end of the period.

6 ~~H.~~ J. 1. A garnishment lien under this section has priority
7 over any subsequent garnishment lien or garnishment summons served
8 on the garnishee during the period it is in effect, regardless of
9 whether the amounts withheld by the garnishee are reduced by the
10 court or by agreement of the parties.

11 2. a. When a garnishment summons is served under this
12 section on a garnishee while a previous garnishment
13 lien is still in effect, the garnishee shall answer
14 the subsequent garnishment lien or garnishment summons
15 by stating that the garnishee is presently holding
16 defendant's property under a previous garnishment lien
17 or garnishment summons, and by giving the date when
18 all previous garnishment liens or garnishment summons
19 are expected to end.

20 b. The subsequent summons is not effective if a summons
21 or lien on the same cause of action is pending at the
22 time of service unless the subsequent summons in the
23 same cause of action is served after the one-hundred-
24 fiftieth day of the previous garnishment lien.

~~¶~~ K. 1. When a postjudgment wage garnishment under Section 1173 of this title or a continuing earnings garnishment under this section is issued against a defendant already subject to an income assignment for child support, the garnishee shall determine the maximum percentage of the defendant's disposable earnings according to the provisions of Section 1171.2 of this title and then deduct from that percentage the actual percentage of the defendant's disposable earnings actually withheld under the income assignment. The resulting percentage shall be the amount to be withheld by the garnishee, not to exceed twenty-five percent (25%).

2. For any involuntary legal or equitable procedures through which the earnings of any individual are required to be withheld for the payment of any debt which has statutory priority over this section, the amount withheld pursuant to a garnishment under this section shall be reduced by the actual sums withheld pursuant to such other involuntary process.

~~¶~~ L. A continuing earnings garnishment may be suspended or modified for a specific period of time within the effective period of the garnishment by the judgment creditor upon agreement with the judgment debtor, which agreement shall be in writing and filed by the judgment creditor with the clerk of the court in which the judgment was entered, and a copy of which shall be mailed by first-class mail, postage prepaid by the judgment creditor to the garnishee.

1 ~~K~~ M. Any garnishment issued against a debtor already subject
2 to a continuing or noncontinuing earnings garnishment shall take
3 effect immediately upon the conclusion of the prior garnishment, and
4 shall be effective for its full one-hundred-eighty-day period of
5 time or as otherwise provided in subsection ~~G~~ I of this section.

6 SECTION 3. AMENDATORY 12 O.S. 2021, Section 1178, as
7 amended by Section 9, Chapter 184, O.S.L. 2023 (12 O.S. Supp. 2025,
8 Section 1178), is amended to read as follows:

9 Section 1178. A. For the purposes of this section, "earnings"
10 means any form of payment to an individual including, but not
11 limited to, salary, wages, commission, or other compensation, but
12 does not include reimbursement for travel expenses for state
13 employees.

14 B. Where the garnishment summons is on earnings and is issued
15 under Section 1173 of this title, the garnishee shall, within ~~seven~~
16 ~~(7) days after the end of defendant's present pay period or where a~~
17 ~~payment of earnings is due, or thirty (30) twenty-one (21) days from~~
18 the service of the summons, ~~whichever is earlier,~~ file an affidavit
19 with the clerk of the court in which the action is pending and
20 deliver or mail a copy thereof to the judgment creditor or the
21 judgment creditor's attorney of record. The affidavit shall state:

22 1. Whether the garnishee was the employer of or indebted or
23 under any liability to the defendant named in the notice in any
24 manner or upon any account for earnings or wages, specifying, as

1 applicable, the beginning and ending dates of the pay period
2 existing at the time of the service of the garnishee summons, the
3 total amounts earned in the pay period, and all of the facts and
4 circumstances necessary to a complete understanding of such
5 indebtedness or liability. When the garnishee shall be in doubt
6 respecting any such liability or indebtedness, the garnishee may set
7 forth all of the facts and circumstances concerning the same, and
8 submit the question to the court;

9 2. If the garnishee shall claim any setoff, defense, other
10 indebtedness, liability, lien, or claim to such property, the facts
11 and circumstances in the affidavit;

12 3. At the garnishee's option, any claim of exemption from
13 execution on the part of the defendant, or other objection known to
14 the garnishee against the right of the judgment creditor to apply
15 the indebtedness or property disclosed;

16 4. If the garnishee shall disclose any indebtedness or the
17 possession of any property to which the defendant, or any other
18 person, makes claim, at the garnishee's option, the names and
19 addresses of such other claimants and, so far as known, the nature
20 of the claims; and

21 5. The garnishee shall state that he or she has mailed or hand-
22 delivered a copy of the notice of garnishment and exemptions,
23 application for hearing, and the manner and date of compliance.
24

1 C. The garnishee's answer shall be on a form prescribed by the
2 Oklahoma Bar Association. The Administrative Office of the Courts
3 shall provide public access to the garnishee's answer by providing a
4 link to the form on the Oklahoma State Courts Network (OSCN)
5 website.

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6 SECTION 4. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 1197 of Title 12, unless there
8 is created a duplication in numbering, reads as follows:

9 If a garnishee withholds earnings from more than one employee
10 for the same creditor and specifies the amount attributable to each
11 employee, the employer may combine the amounts in one payment to the
12 creditor.

13 SECTION 5. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 1198 of Title 12, unless there
15 is created a duplication in numbering, reads as follows:

16 A. A garnishee shall not be liable for a sanction under Section
17 6 of this act unless:

18 1. The debtor or creditor files a motion with the court which
19 states with specificity the nature of the garnishee's failure to
20 comply with this act; and

21 2. The garnishee fails:

22 a. to provide an answer as required by this act not later
23 than twenty-one (21) calendar days after the earlier
24

1 of the time the garnishee receives the summons for
2 garnishment;

- 3 b. to begin withholding earnings of the defendant not
4 later than thirty (30) calendar days after making the
5 answer required by this act.

6 B. The court may excuse, for good cause, payment of all or part
7 of an amount due under Section 6 of this act.

8 SECTION 6. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 1199 of Title 12, unless there
10 is created a duplication in numbering, reads as follows:

11 Subject to Section 5 of this act, a garnishee that fails to
12 comply with Section 5 of this act shall be liable to the creditor
13 for Twenty Dollars (\$20.00) for each day beginning twenty-two (22)
14 days after service of the summons:

- 15 a. until the garnishee provides the answer as required by
16 law, or
17 b. until the earlier of the day the garnishee sends the
18 answer or begins withholding earnings from the
19 defendant.

20 SECTION 7. REPEALER 12 O.S. 2021, Section 1179, is
21 hereby repealed.

22 SECTION 8. This act shall become effective November 1, 2026.
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24 60-2-17182 AQH 03/19/26

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